

DEFENDANT'S MOTION TO DISMISS

TEXAS DISTRICT COURT
TRAVIS COUNTY, TEXAS

ACME HEALTHCARE SOLUTIONS, INC.,
Plaintiff,
v.
DR. SARAH J. WHITFIELD,
Defendant.

Cause No. D-2026-00187

DEFENDANT'S MOTION TO DISMISS

TO THE HONORABLE JUDGE OF SAID COURT:

Defendant Dr. Sarah J. Whitfield moves to dismiss Plaintiff's claims on the following grounds:

1. The Non-Compete Covenant is unenforceable under Texas law because:
 - a. It is an unreasonable restraint of trade;
 - b. The 50-mile geographic restriction is overly broad;
 - c. The 24-month temporal restriction is excessive;
 - d. Company has no legitimate business interest justifying such broad restrictions.
2. Company failed to show irreparable harm necessary for injunctive relief.
3. The liquidated damages clause is an unenforceable penalty.

WHEREFORE, Defendant requests that the Court dismiss Plaintiff's claims with prejudice.

Respectfully submitted,
David K. Park, Esq.
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Attorneys for Defendant